



U.S. Department
of Transportation

Research and
Special Programs
Administration

AUG 14 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 5923
(SIXTH REVISION)

EXPIRATION DATE: July 31, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Praxair Distribution, Inc.
Tonawanda, NY

(See Appendix A to this document for a list of additional grantees and expiration dates)

2. PURPOSE AND LIMITATION:

- a. This exemption authorizes the transportation in commerce of the Division 2.1 and Division 2.2 gases listed in paragraph 6, below, in DOT Specification 106A500X and 110A500W multi-unit tank car tanks which have not been subjected to the periodic hydrostatic retest. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
 4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.31(a)(1) and (3), in that tank car tanks may be refilled without having been periodically retested; 173.314(c), in that use of a DOT Class 110 multi-unit tank car tank is permitted for all hazardous materials authorized herein; and 180.519 (a) and (b), in that tank car tanks need not be periodically retested.
 5. BASIS: This exemption is based on the application of Praxair Distribution, Inc. dated August 13, 1998 submitted

AUG 14 1986

Continuation DOT-E 5923 (6th Rev.)

Page 2

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Dimethylamine, anhydrous	2.1	UN 1032	N/A
Dimethyl ether	2.1	UN 1033	N/A
Ethylamine	2.1	UN 1036	N/A
Methylamine, anhydrous	2.1	UN 1061	N/A
Methyl chloride	2.1	UN 1063	N/A
Petroleum gases, liquefied	2.1	UN 1075	N/A
Trimethylamine, anhydrous	2.1	UN 1083	N/A
Liquefied hydrocarbon gas (with vapor pressure not exceeding 375 psig (2585 kPa) at 130°F (55°C)) and compressed gas mixtures specifically identified to, and acknowledged in writing by, the OHMEA prior to the first shipment	2.1 or 2.2, as appro- priate	As appro- priate	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification 106A500X or 110A500W multi-unit tank car tank.

b. TESTING - Tank car tanks need not be subjected to the periodic hydrostatic retest, but must be visually inspected in accordance with 49 CFR 180.519(c). Written records of the required visual inspection must be maintained in accordance with 49 CFR 180.519(d).

8. SPECIAL PROVISIONS:

a. Authorized hazardous materials must be free of corroding components.

b. Maximum permitted filling densities must be as specified in 49 CFR 173.314(c) for the hazardous material concerned.

- c. The vapor pressure of liquefied petroleum gases may not exceed 375 psig (2585 kPa) at 130°F (55°C).
 - d. The water content of methyl chloride may not exceed 0.015 percent, by weight.
 - e. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
 - f. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.
10. MODAL REQUIREMENTS: This exemption imposes no additional modal requirements.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

AUG 14 1998

Continuation DOT-E 5923 (6th Rev.)

Page 4

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

8/14/98
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, Washington, DC 20590-0001, Attention: Docket Section, 202-366-5046.

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